

**FEDERAL MARITIME COMMISSION**  
**Office of Administrative Law Judges**

M.E. DEY & CO., INC., *Complainant*

v.

HAPAG-LLOYD AG AND HAPAG-LLOYD (AMERICA) LLC,  
*Respondents and Third-Party Complainants*

v.

CSX TRANSPORTATION, INC., *Third-Party Respondent.*

**DOCKET NO. 22-35**

Served: July 2, 2024

---

**ORDER OF:** Alex M. CHINTELLA, *Administrative Law Judge.*

---

**ORDER ON THIRD-PARTY RESPONDENT’S REQUEST FOR STATUS CONFERENCE**

On June 17, 2024, Complainant M.E. Dey & Co., Inc. (“Dey”) and Respondents Hapag-Lloyd (America) LLC and Hapag-Lloyd AG (“Hapag”) filed a Joint Motion for Approval of Confidential Settlement Agreement. On June 28, 2024, Third-Party Respondent CSX Transportation, Inc. (“CSXT”) filed a request for a status conference, claiming it should “be served and afforded an opportunity to respond” to the joint motion, and seeking to discuss “related procedural matters in connection with service and the Commission’s Review Notice.” The request notes that Dey and Hapag do not oppose the request for a status conference.

The request does not spell out exactly what the “related procedural matters” are, and I am not inclined to hold an open-ended status conference after I have dismissed the third-party complaint against CSXT and the Commission has noted its intent to review my order (see June 14, 2024 Notice of Commission Determination to Review) – it is the Commission’s prerogative to direct the procedures employed with respect to any issues related to the order under its review, which necessarily include all issues related to CSXT’s liability as a third-party defendant to third-party plaintiff Hapag.

As to the issues still before me – those related to Dey’s complaint against Hapag – the parties have reached a settlement agreement and have filed a joint motion seeking approval of that settlement agreement. CSXT states that Dey and Hapag should have served their joint motion on CSXT, and CSXT should have an opportunity to respond. According to CSXT, Dey and Hapag apparently do not disagree that CSXT should have been served, stating the omission was inadvertent. Perhaps they should have served the motion on CSXT, but since CSXT is now

aware of the motion, it is available on the Commission’s docket, and I have not issued a decision on approval of the settlement agreement, it does not appear that there is any prejudice to CSXT to be remedied. The publicly available copy of the motion does not include the settlement agreement itself, but Dey and Hapag have requested confidential treatment for the agreement, and no argument has been made that I should depart from the Commission’s practice of honoring requests to keep settlement agreements confidential. *See Al Kogan v. World Express Shipping, Transportation and Forwarding Services, Inc.*, 29 S.R.R. 68, 70 n.7 (ALJ 2000) (citations omitted); *Marine Dynamics v. RTM Line, Ltd.*, 27 S.R.R. 503, 504 (ALJ 1996); *Int’l Assoc. of NVOCCs v. Atlantic Container Line*, 25 S.R.R. 1607, 1609 (ALJ 1991). CSXT claims to have “substantive legal interests” in the outcome of the joint motion, so in the interest of ensuring Dey and Hapag’s settlement does not violate any law or policy, CSXT will be given an opportunity to respond. *Old Ben Coal Co. v. Sea-Land Serv., Inc.*, 18 S.R.R. 1085, 1092 (ALJ 1978).

In consideration of the foregoing, CSXT’s request for a status conference is **DENIED**. CSXT may file a response to the Joint Motion for Approval of Confidential Settlement Agreement on or before **July 11, 2024**.

**ALEX**  
**CHINTELLA**  
Digitally signed by  
ALEX CHINTELLA  
Date: 2024.07.02  
13:58:44 -04'00'

---

Alex M. Chintella  
Administrative Law Judge